



BAKERSFIELD

PUBLIC WORKS

CITY OF BAKERSFIELD

FISCAL YEAR 2022-2023

ANNUAL COMPLIANCE REPORT FOR BRIDGE AND MAJOR THOROUGHFARE DISTRICT FEES

Prepared in accordance with California Government Code §66006

CITY OF BAKERSFIELD

**ANNUAL COMPLIANCE REPORT FOR BRIDGE AND
MAJOR THOROUGHFARE DISTRICT FEES**

FY 2022-2023

City Council

Karen Goh.....	Mayor
Eric Arias	Member/Ward 1
Andrae Gonzalez.....	Vice Mayor/Member/Ward 2
Ken Weir.....	Member/Ward 3
Bob Smith.....	Member/Ward 4
Bruce Freeman.....	Member/Ward 5
Patty Gray.....	Member/Ward 6
Manpreet Kaur	Member/Ward 7

Administrative Personnel

Christian Clegg	City Manager
Virginia Gennaro	City Attorney
Christopher Boyle	Development Services Director
Jennifer Byers.....	Acting Economic & Community Development Director
Randy McKeegan.....	Finance Director
John Frando	Fire Chief
Christi Tenter.....	Human Resources Director
Greg Terry	Police Chief
Gregg Strakaluse.....	Public Works Director
Rick Anthony	Recreation & Parks Director
Greg Pronovost.....	Technology Services Director
Kristina Budak	Water Resources Director

**Annual Compliance Report for
Bridge and Major Thoroughfare District Fees**

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Introduction

A local ordinance may require the payment of a fee as a condition of approval of a final map or as a condition of issuing a building permit for purposes of defraying the actual or estimated cost of constructing bridges over waterways, railways, freeways, and canyons, or constructing major thoroughfares. (GC §66484)

Government Code Section 66006 requires that the local agency shall, within 180 days after the last day of each fiscal year, make available to the public specific information. The specific information to be made available to the public is summarized on Page 2 of this Report.

Pursuant to Government Code Section 66006, after the information contained in the Report is made available to the public, the Council shall review the information in the Report at the next regularly scheduled public meeting. However, the public meeting must occur not less than 15 days after the information contained in the Report is made available to the public.

There are seven Bridge and Major Thoroughfare Districts (BMTD) within the metropolitan Bakersfield area subject to Government Code §66006:

1. Miramonte Drive-Chase Avenue planned major thoroughfare area (Ward 3) - Miramonte-Chase BMTD was formed to pay for the extension of Miramonte Drive from the south Section line of Section 15, Township 29 South, Range 29 East, Mount Diablo Base and Meridian to Chase Avenue, and to construct two lanes on Chase Avenue from Miramonte Drive to Comanche Drive.
2. Ashe Road planned bridge and major thoroughfare area (Ward 6) - Ashe Road BMTD was formed to pay for the construction of one railroad crossing and two canal crossings on Ashe Road between Panama Lane and the Southern Pacific Railroad (Buttonwillow/Asphalto branch).
3. West Beltway planned major thoroughfare area (Ward 5) – West Beltway BMTD was formed to pay for two lanes of the West Beltway to arterial standards from Ming Avenue to the Asphalto Railroad.
4. West Ming – Kern River Canal bridge district (Ward 5) – West Ming – Kern River Canal bridge district was formed to pay for two local collector crossings over the Kern River Canal in the West Ming Specific Plan Area.
5. Taft Highway – Farmers Canal bridge district (Ward 6) – this bridge district was formed as a condition of Resolution No. 50-12 to pay for the cost of widening the Farmers Canal crossing on Taft Highway.
6. East Panama Lane – Central Canal (North Half) Bridge District (Ward 1) – this bridge district was formed as a condition of approval for Zone Change 05-1507 and Vesting Tentative Tract Map 7029 to pay for the cost to widen the East Panama Lane Crossing of the Central Canal (North Half).

7. Eastside Canal Crossings planned major thoroughfare area (Ward 1) – this thoroughfare area was formed to pay for the widening of canal crossing at Redbank Road, construction of canal crossing at E Wilson Road and widening of canal crossing at Muller Road.
8. Arvin Edison Canal Crossing planned major thoroughfare area (Ward 1) – this thoroughfare area was formed to pay for the widening of canal crossing and public street at Madison Street.

The amount of the fees collected, and any interest earned in the above bridge crossing and major thoroughfare areas (MBTA) are separated into individual funds in accordance with California Government Code §66484(e) and Bakersfield Municipal Code §16.32.060(F)(3).

Annual Reporting Requirements

Government Code Section 66006 (b) (1) sets forth the annual compliance reporting requirements as:

For each separate account or fund established pursuant to subdivision (a), the local agency shall, within 180 days after the last day of each fiscal year, make available to the public the following information for the fiscal year:

- (A) A brief description of the type of fee in the account or fund.
- (B) The amount of the fee.
- (C) The beginning and ending balance of the account or fund.
- (D) The amount of the fees collected, and the interest earned.
- (E) An identification of each public improvement on which fees were expended and the amount of the expenditures on each improvement, including the total percentage of the cost of the public improvement that was funded with fees.
- (F) An identification of an approximate date by which the construction of the public improvement will commence if the local agency determines that sufficient funds have been collected to complete financing on an incomplete public improvement, as identified in paragraph (2) of subdivision (a) of Section 66001, and the public improvement remains incomplete.
- (G) A description of each inter-fund transfer or loan made from the account or fund, including the public improvement on which the transferred or loaned fees will be expended, and, in the case of an inter-fund loan, the date on which the loan will be repaid, and the rate of interest that the account or fund will receive on the loan.
- (H) The amount of refunds made pursuant to subdivision (e) of Section 66001 and any allocations pursuant to subdivision (f) of Section 66001.

MIRAMONTE DRIVE – CHASE AVENUE PLANNED MAJOR THOROUGHFARE AREA

As of the date of this report, no BMTD fees have been collected and no expenditures have been made for the Miramonte Drive-Chase Avenue MBTA. The only GC §66006(b) (1) reportable items for these MBTDs are:

Requirement A – Description of fee

Requirement B - Amount of fee

(A) Description of fee

- Prior to filing any final tract of parcel map or issuance of a building permit, fees may be assessed and collected pursuant to Section 66484 of the California Government Code for the purpose of defraying the actual or estimated costs of constructing bridge crossings or major thoroughfares identified in the transportation or flood control provisions of the circulation element of the Metropolitan Bakersfield 2010 General Plan. (BMC 16.32.060 (F)(1))
- Fees paid pursuant to this section shall be deposited in a planned bridge facility or major thoroughfare fund. A fund shall be established for each planned bridge facility project, or each planned major thoroughfare project. If the benefit area is one in which more than one bridge is required to be constructed, a fund may be established covering all the bridge projects in the benefit area. Money in the fund shall be expended solely for the construction or reimbursement for construction of the improvement serving the area to be benefited and from which the fees comprising the fund were collected, or to reimburse the city for the cost of constructing the improvement. (BMC 16.32.060 (F)(3))

(B) Amount of fee

- **Miramonte Drive-Chase Avenue Planned Major Thoroughfare Area**

$\$3,779,003 \div 1019.61 \text{ acres} = \$3,706.32 / \text{gross acre}^1$

¹Resolution No. 095-10 available at: <http://lf/WebLink/0/doc/908623/Page1.aspx>

ASHE ROAD PLANNED BRIDGE AND MAJOR THOROUGHFARE AREA

(A) Description of fee

- Prior to filing any final tract of parcel map or issuance of a building permit, fees may be assessed and collected pursuant to Section 66484 of the California Government Code for the purpose of defraying the actual or estimated costs of constructing bridge crossings or major thoroughfares identified in the transportation or flood control provisions of the circulation element of the Metropolitan Bakersfield 2010 General Plan. (BMC 16.32.060 (F)(1))
- Fees paid pursuant to this section shall be deposited in a planned bridge facility or major thoroughfare fund. A fund shall be established for each planned bridge facility project, or each planned major thoroughfare project. If the benefit area is one in which more than one bridge is required to be constructed, a fund may be established covering all the bridge projects in the benefit area. Money in the fund shall be expended solely for the construction or reimbursement for construction of the improvement serving the area to be benefited and from which the fees comprising the fund were collected, or to reimburse the city for the cost of constructing the improvement. (BMC 16.32.060 (F)(3))

(B) Amount of fee

- The fee is calculated by dividing the construction costs of the improvements by the number of equivalent dwelling units (EDU) within the MBTA boundaries¹:

Ashe Road Planned Bridge and Major Thoroughfare Area Fee	
Year	Fee per gross acre
2022	\$790.00
2023	\$790.00

(C) Beginning and ending fund balance

Beginning Balance @ 7/1/22	\$32,095.80
Ending Balance @ 6/30/23	\$32,752.58

(D) Fees collected and interest earned

• MTD fees	\$
• Interest Earned	\$ 779.78
• Market Value Adjustment	\$ (123.00)

(E) Public Improvements

- N/A

(F) Timing of projects

- N/A

(G) Interfund transfers/loans

N/A

(H) Refunds

- N/A

¹ Resolution No. 67-89 is available at: <http://lf/WebLink/0/doc/3732/Page1.aspx>

WEST BELTWAY PLANNED MAJOR THOROUGHFARE AREA

(A) Description of fee

- Prior to filing any final tract of parcel map or issuance of a building permit, fees may be assessed and collected pursuant to Section 66484 of the California Government Code for the purpose of defraying the actual or estimated costs of constructing bridge crossings or major thoroughfares identified in the transportation or flood control provisions of the circulation element of the Metropolitan Bakersfield 2010 General Plan. (BMC 16.32.060 (F)(1))
- Fees paid pursuant to this section shall be deposited in a planned bridge facility or major thoroughfare fund. A fund shall be established for each planned bridge facility project, or each planned major thoroughfare project. If the benefit area is one in which more than one bridge is required to be constructed, a fund may be established covering all the bridge projects in the benefit area. Money in the fund shall be expended solely for the construction or reimbursement for construction of the improvement serving the area to be benefited and from which the fees comprising the fund were collected, or to reimburse the city for the cost of constructing the improvement. (BMC 16.32.060 (F)(3))

(B) Amount of fee

- The fee is calculated by dividing the construction costs of the improvements by the number of equivalent dwelling units (EDU) within the MBTA boundaries²:

West Beltway Planned Major Thoroughfare Area Fee¹	
Year	Fee per EDU
2022	\$392.64
2023	\$415.41

(C) Beginning and ending fund balance

Beginning Balance @ 7/1/22	\$542,547.83
Ending Balance @ 6/30/23	\$607,087.80

(D) Fees collected and interest earned

• MTA fees	\$54,093.81
• Interest Earned	\$13,819.16
• Market Value Adjustment	\$(3,373.00)

(E) Public Improvements

- N/A

(F) Timing of projects

- N/A

(G) Interfund transfers/loans

N/A

(H) Refunds

- N/A

¹ Resolution No. 014-14 is available at: <http://lf/WebLink/0/doc/1050173/Page1.aspx>

WEST MING – KERN RIVER CANAL BRIDGE DISTRICT

(A) Description of fee

- Prior to filing any final tract of parcel map or issuance of a building permit, fees may be assessed and collected pursuant to Section 66484 of the California Government Code for the purpose of defraying the actual or estimated costs of constructing bridge crossings or major thoroughfares identified in the transportation or flood control provisions of the circulation element of the Metropolitan Bakersfield 2010 General Plan.(BMC 16.32.060 (F)(1))
- Fees paid pursuant to this section shall be deposited in a planned bridge facility or major thoroughfare fund. A fund shall be established for each planned bridge facility project, or each planned major thoroughfare project. If the benefit area is one in which more than one bridge is required to be constructed, a fund may be established covering all the bridge projects in the benefit area. Money in the fund shall be expended solely for the construction or reimbursement for construction of the improvement serving the area to be benefited and from which the fees comprising the fund were collected, or to reimburse the city for the cost of constructing the improvement. (BMC 16.32.060 (F)(3))

(B) Amount of fee

- The fee is calculated by dividing the construction costs of the improvements by the number of equivalent dwelling units (EDU) within the MBTD boundaries:

Fee per Equivalent Dwelling Unit (EDU)¹		
Fee Area No. 1	North of Kern River Canal	\$820.50 / EDU
Fee Area No. 2	South of Kern River Canal	\$523.45 / EDU

(C) Beginning and ending fund balance

Beginning Balance @ 7/1/22	\$490,169.22
Ending Balance @ 6/30/23	\$555,031.16

(D) Fees collected and interest earned

- MBTD fees \$55,410.90
- Interest Earned \$12,659.04
- Market Value Adjustment \$(3,208.00)

(E) Public Improvements

- N/A

(F) Timing of projects

- N/A

(G) Interfund transfers/loans

- N/A

(H) Refunds

- N/A

¹Resolution No. 187-16 is available at: <http://lf/WebLink/0/doc/1372858/Page1.aspx>

TAFT HIGHWAY – FARMERS CANAL BRIDGE DISTRICT

(A) Description of fee

- Prior to filing any final tract of parcel map or issuance of a building permit, fees may be assessed and collected pursuant to Section 66484 of the California Government Code for the purpose of defraying the actual or estimated costs of constructing bridge crossings or major thoroughfares identified in the transportation or flood control provisions of the circulation element of the Metropolitan Bakersfield 2010 General Plan.(BMC 16.32.060 (F)(1))
- Fees paid pursuant to this section shall be deposited in a planned bridge facility or major thoroughfare fund. A fund shall be established for each planned bridge facility project, or each planned major thoroughfare project. If the benefit area is one in which more than one bridge is required to be constructed, a fund may be established covering all the bridge projects in the benefit area. Money in the fund shall be expended solely for the construction or reimbursement for construction of the improvement serving the area to be benefited and from which the fees comprising the fund were collected, or to reimburse the city for the cost of constructing the improvement. (BMC 16.32.060 (F)(3))

(B) Amount of fee

- The fee is calculated by dividing the construction costs of the improvements by the number of acres within the MBTD boundaries:

Taft Highway – Farmers Canal Bridge District¹	
Year	Fee per acre
2022	\$502.90
2023	\$517.99

(C) Beginning and ending fund balance

Beginning Balance @ 7/1/22	\$11,349.68
Ending Balance @ 6/30/23	\$11,581.34

(D) Fees collected and interest earned

• MBTD fees	\$ 0.00
• Interest Earned	\$ 275.66
• Market Value Adjustment	\$(44.00)

(E) Public Improvements

- N/A

(F) Timing of projects

- N/A

(G) Interfund transfers/loans

- N/A

(H) Refunds

- N/A

¹Resolution No. 187-17 is available at: <http://lf/WebLink/0/doc/1372858/Page1.aspx>

EAST PANAMA LANE - CENTRAL CANAL (NORTH HALF) BRIDGE DISTRICT

(A) Description of fee

- Prior to filing any final tract of parcel map or issuance of a building permit, fees may be assessed and collected pursuant to Section 66484 of the California Government Code for the purpose of defraying the actual or estimated costs of constructing bridge crossings or major thoroughfares identified in the transportation or flood control provisions of the circulation element of the Metropolitan Bakersfield 2010 General Plan.(BMC 16.32.060 (F)(1))
- Fees paid pursuant to this section shall be deposited in a planned bridge facility or major thoroughfare fund. A fund shall be established for each planned bridge facility project, or each planned major thoroughfare project. If the benefit area is one in which more than one bridge is required to be constructed, a fund may be established covering all the bridge projects in the benefit area. Money in the fund shall be expended solely for the construction or reimbursement for construction of the improvement serving the area to be benefited and from which the fees comprising the fund were collected, or to reimburse the city for the cost of constructing the improvement. (BMC 16.32.060 (F)(3))

(B) Amount of fee

- The fee is calculated by dividing the construction costs of the improvements by the number of acres within the MBTD boundaries:

East Panama Lane-Central Canal (North Half) Bridge District¹	
Year	Fee per acre
2022	\$1,947.98
2023	\$2,006.42

(C) Beginning and ending fund balance

Beginning Balance @ 7/1/22	\$55,291.96
Ending Balance @ 6/30/23	\$56,421.59

(D) Fees collected and interest earned

• MBTD fees	\$0.00
• Interest Earned	\$1,342.63
• Market Value Adjustment	\$(213.00)

(E) Public Improvements

- N/A

(F) Timing of projects

- N/A

(G) Interfund transfers/loans

- N/A

(H) Refunds

- N/A

¹Resolution No. 013-18 is available at: <http://docs.bakersfieldcity.us/weblink/0/doc/1379233/Page1.aspx>

EAST CANAL CROSSINGS PLANNED MAJOR THOROUGHFARE AREA

(A) Description of fee

- Prior to filing any final tract of parcel map or issuance of a building permit, fees may be assessed and collected pursuant to Section 66484 of the California Government Code for the purpose of defraying the actual or estimated costs of constructing bridge crossings or major thoroughfares identified in the transportation or flood control provisions of the circulation element of the Metropolitan Bakersfield 2010 General Plan. (BMC 16.32.060 (F)(1))
- Fees paid pursuant to this section shall be deposited in a planned bridge facility or major thoroughfare fund. A fund shall be established for each planned bridge facility project, or each planned major thoroughfare project. If the benefit area is one in which more than one bridge is required to be constructed, a fund may be established covering all the bridge projects in the benefit area. Money in the fund shall be expended solely for the construction or reimbursement for construction of the improvement serving the area to be benefited and from which the fees comprising the fund were collected, or to reimburse the city for the cost of constructing the improvement. (BMC 16.32.060 (F)(3))

(B) Amount of fee

- The fee is calculated by dividing the construction costs of the improvements by the number of acres within the MBTD boundaries:

Fee per Equivalent Dwelling Unit (EDU)¹		
Fee Area No. 1	1 North Subdistrict	\$413.20 / EDU
Fee Area No. 2	1 South & 2 North Subdistrict	\$981.81 / EDU
Fee Area No. 3	2 South & 3 North Subdistrict	\$913.78 / EDU
Fee Area No. 4	3 North Subdistrict	\$345.17 / EDU
Fee Area No. 5	3 South Subdistrict	\$345.17 / EDU

(C) Beginning and ending fund balance

Beginning Balance @ 7/1/22	\$ 931.83
Ending Balance @ 6/30/23	\$ 19,287.14

(D) Fees collected and interest earned

• MBTD fees	\$ 18,616.81
• Interest Earned	\$ 179.50
• Market Value Adjustment	\$ (441.00)

(E) Public Improvements

- N/A

(F) Timing of projects

- N/A

(G) Interfund transfers/loans

- N/A

(H) Refunds

- N/A

¹Resolution No. 052-21 is available at: <https://docs.bakersfieldcity.us/weblink/0/doc/1489610/Page1.aspx>

ARVIN EDISON CANAL CROSSING PLANNED MAJOR THOROUGHFARE AREA

(A) Description of fee

- Prior to filing any final tract of parcel map or issuance of a building permit, fees may be assessed and collected pursuant to Section 66484 of the California Government Code for the purpose of defraying the actual or estimated costs of constructing bridge crossings or major thoroughfares identified in the transportation or flood control provisions of the circulation element of the Metropolitan Bakersfield 2010 General Plan.(BMC 16.32.060 (F)(1))
- Fees paid pursuant to this section shall be deposited in a planned bridge facility or major thoroughfare fund. A fund shall be established for each planned bridge facility project, or each planned major thoroughfare project. If the benefit area is one in which more than one bridge is required to be constructed, a fund may be established covering all the bridge projects in the benefit area. Money in the fund shall be expended solely for the construction or reimbursement for construction of the improvement serving the area to be benefited and from which the fees comprising the fund were collected, or to reimburse the city for the cost of constructing the improvement. (BMC 16.32.060 (F)(3))

(B) Amount of fee

- The fee is calculated by dividing the construction costs of the improvements by the number of acres within the MBTD boundaries:

ARVIN EDISON CANAL CROSSING PLANNED MAJOR THOROUGHFARE AREA	
Year	Fee per acre
2022	\$3,238.00
2023	\$3,335.00

(C) Beginning and ending fund balance

Beginning Balance @ 7/1/22	\$ 29,783.69
Ending Balance @ 6/30/23	\$ 132,438.74

(D) Fees collected and interest earned

• MBTD fees	\$ 102,299.91
• Interest Earned	\$ 1,132.14
• Market Value Adjustment	\$ (777.00)

(E) Public Improvements

- N/A

(F) Timing of projects

- N/A

(G) Interfund transfers/loans

- N/A

(H) Refunds

- N/A

¹Resolution No. 02-22 is available at: <http://lf/WebLink/DocView.aspx?id=1567961&dbid=0&repo=CITYRECORDS>